

24VECV05545 24VECV05545

County: los-angeles

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Case Number: 24VECV05545 Hearing Date: July 29, 2026 Dept: I

24VECV05545 MARTHA JEANNETTE REYNA v.

PEOPLEREADY, INC., et al.

July 29, 2026, at 9:00 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel Further

Discovery

I.

Background

On February 10, 2023, Plaintiff Martha

Jeannette Reyna ("Plaintiff") was stopped at a redlight when she was rear-ended

by Defendants Sujey Trujillo, PeopleReady, Inc., TrueBlue, Inc., Jesus

Trujillo, and Maria Trujillo. (Complaint p. 5.) Plaintiff sustained injuries.

(Complaint p. 3.)

On November 8, 2024, Plaintiff filed a

complaint against Defendants PeopleReady, Inc., TrueBlue, Inc. (collectively,

"Defendants"), Sujey Trujillo, Jesus Trujillo, Maria Trujillo, and Does 1 to

100, alleging causes of action for: (1) motor vehicle; and (2) general

negligence.

Defendants served Requests for

Production of Documents, Set One ("RPD") on Plaintiff. (Selman Decl., ¶

1.) Plaintiff served initial responses

on January 5, 2026. (Selman Decl., ¶ 1.)

On April 28, 2026, Defendants filed the instant motion to compel further responses.

Plaintiff has not filed an opposition.

On July 22, 2026, Defendants filed a reply addressing Plaintiff's non-opposition.

II. Motion to Compel Further Discovery

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general." (Code Civ. Proc. § 2031.310, subd. (a).)

Analysis

A motion to compel further responses shall be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b)(2).) On January 23, 2026, Defendants' counsel sent a meet and confer letter identifying alleged deficiencies in Plaintiff's response. (Selman Decl., ¶ 2; Ex. 2.) On February 4, 2026, counsel met and conferred via telephone regarding the outstanding discovery matters. (Selman Decl., ¶ 4; Ex. D.) On April 9, 2026, the parties participated in an Informal Discovery Conference. (Selman Decl., ¶ 5.) Following the IDC, Defendants' counsel sent a meet and confer letter to inquire regarding the status of Plaintiff's further responses. (Selman Decl., ¶ 5.) Accordingly, Defendants satisfy the meet and confer requirement of Code of Civil Procedure section 2031.310, subdivision (b).

Defendants move to compel Plaintiff's further responses to RPD Nos. 17, 18, 33, 34, 35, and 36. (Mot., p. 2.) These requests pertain to Plaintiff's medical and psychiatric records for 10 years preceding the accident, Plaintiff's communications

regarding the accident, and Plaintiff's cell phone data from around the time of the accident. (Mot., p. 2.)

RPD Nos. 17
and 18

Defendants argue

RPD Nos. 17 and 18, requests regarding Plaintiff's medical records, are discoverable under Evidence Code section 996 because Plaintiff has tendered a total of eighty injuries sustained as a result of the accident. (Mot., pp. 5-6.) Under Evidence Code section 996

"[t]here is no privilege under this article as to a communication relevant to an issue concerning the condition of the patient if such issue has been tendered by: (a) The patient." (Mot., p. 6; Evid. Code, § 996.) Defendants further contend Plaintiff's contention that responsive medical and psychological records are not within her possession, custody, or control is improper because Plaintiff, as the patient, has a statutory right to obtain copies of her own medical records and therefore controls the records. (Mot., p. 6.)

Plaintiff objected

to these requests on the grounds they improperly seek all medical records for a fifteen-year period. (See Separate Statement.) Plaintiff further objects on the grounds the requests violate Plaintiff's constitutional right to privacy and seek information protected by the physician-patient privilege. (See Separate Statement.) Without waiving the objections, Plaintiff responded stating that, after a diligent search and reasonable inquiry, Responding Party has no responsive documents in their possession, custody, or control. (See Separate Statement.)

First, during

the parties' meet and confer, Defendants agreed to limit Nos. 17 and 18 to a period of ten years. (Mot., p. 6.) Next, the RPDs relate to Plaintiff's medical history; as a result, the RPDs would not implicate privacy rights because Plaintiff, the patient, placed the claimed physical and mental injuries at issue. (See Evid. Code, § 996 ["There is no privilege under this article as to a communication relevant to an issue concerning the condition of the patient if such issue has been tendered by: (a) the patient...."].) Further, Plaintiff's vague and ambiguous objections are without merit. A party responding to a discovery request is obligated to attempt a good-faith response even where there is some ambiguity. (See Deyo

v. Kilbourne (1978) 84 Cal.App.3d 771, 783.) Requests for “memos,” “notes,” “charts,” and “other writings,” are not so vague and ambiguous that Plaintiff is unable to attempt a good-faith response.

Moreover, Plaintiff’s response is insufficient. “Control is defined as the legal right to obtain documents upon demand.” (U.S. v. International Union of Petroleum and Indus. Workers, AFL-CIO (1989) 870 F.2d 1450, 1452.) As the patient, Plaintiff has the legal right to obtain copies of her own medical records. Further, Plaintiff’s counsel indicated during the February 4, 2026, meet and confer that Plaintiff would check to see whether Plaintiff saw any medical or psychiatric practitioners in the ten years prior to the accident. (Selman Decl., ¶ 4.) This suggests Plaintiff did not conduct a thorough search at the time Plaintiff responded to the RPDs on January 5, 2026. Based on the foregoing, the Court is unpersuaded that Plaintiff has exhausted efforts to locate responsive documents.

Plaintiff’s objections are without merit and her response is insufficient. Accordingly, Defendants’ motion to compel further responses is GRANTED as to Nos. 17 and 18.

RPD Nos. 33,
34, 35, and 36

Defendants argue the requests regarding Plaintiff’s communications with other individuals regarding the accident and cell phone data from around the time of the accident are relevant. (Mot., p. 7.) Defendants contend the parties agreed to limit the scope of these requests as a result of their efforts to meet and confer. (Mot., p. 7.) Defendants argue Plaintiff’s responses are inadequate and that Plaintiff has not engaged in a sufficient effort to conduct a diligent search. (Mot., p. 7.)

Plaintiff objected to RPD Nos. 34, 35, and 36 on the grounds the requests violate Plaintiff’s constitutional right to privacy. (See Separate Statement.) Without waiving the objections, Plaintiff responded to RPD Nos. 33, 34, 35, and 36, stating that, after a diligent search and reasonable inquiry, Responding Party has no responsive documents in their possession, custody, or control. (See Separate Statement.)

First,

Plaintiff's cell phone records and communications regarding the accident are relevant to Plaintiff's claims. Next, to the extent the requested documents are subject to privilege, Plaintiff must separately identify each withheld document in a privilege log, pursuant to Code of Civil Procedure section 2031.240, subdivision (c).

Finally,

Plaintiff's response is insufficient. Code of Civil Procedure section 2031.230 imposes three requirements when a responding party cannot comply with a demand: (1) the statement must affirm that a diligent search and a reasonable inquiry has been made; (2) the statement must specify the reason for the inability to comply; (3) the statement must set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control. (Code Civ. Proc., § 2031.230.)

Here, Plaintiff's responses fail to identify the name and address of any person or organization that may have possession, custody, or control of the requested documents. Plaintiff's responses are thus insufficient under section 2031.230.

Accordingly,

Defendants' motion to compel further responses is GRANTED as to Nos. 33, 34, 35, and 36.

III. Conclusion

Based on the foregoing, Defendants' motion to compel further responses is GRANTED. Plaintiff to provide verified, code compliant further responses within 30 days of this Order.

Moving party to give notice.